IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FOURTH DISTRICT, STATE OF FLORIDA

MARK DELUCA, M.D.,
Petitioner,

v.

DEPARTMENT OF HEALTH,
Respondent.

_____/

CASE NO: 4D25-
_____
DOAH Case No. 25-000778PL; DOH Case No. 2023-28549

PETITION FOR REVIEW OF NON-FINAL AGENCY ACTION

INTRODUCTION

Respondent Department of Health ("DOH") filed an administrative complaint against Petitioner Mark DeLuca, M.D. ("Dr. DeLuca") for alleged sexual misconduct. Over a thirteen-month period, the DOH conducted and closed its investigation, submitted its finalized and complete investigative report to a Probable Cause Panel (the "Panel"), received authorization from the Panel to issue an administrative complaint based on the investigative report, and issued not only an Administrative Complaint but an Amended Administrative Complaint against Dr. DeLuca. At no point during that investigative process did the DOH seek copies of text messages between Dr. DeLuca and the patient at issue.

One day after issuing the Amended Administrative Complaint, the DOH began issuing new "investigative" subpoenas (despite its investigation already being closed) to look for new evidence against Dr. DeLuca from T-Mobile and AT&T, primarily seeking text message correspondences. At that point, the DOH had not yet submitted this matter to the Florida Division of Administrative Hearings ("DOAH") despite Dr. DeLuca's Requests for a Formal Administrative Hearing that he submitted to the DOH in response to both the Administrative Complaint and the Amended Administrative Complaint, and the DOH did not yet have subpoena powers under the APA.

The DOH, through its Affidavits for Subpoena, made false statements and misrepresentations to support the need and basis for the subpoenas. The DOH's true purpose in issuing the subpoenas was to improperly obtain the content of text messages that the DOH did not obtain during its investigation and which the DOH cannot obtain without a warrant, and certainly not via a subpoena under applicable Florida law.

After it completed its investigation and before the DOH could obtain subpoena power by referring the case to DOAH, the DOH realized that it needed text messages and the content of them which the DOH had not

bothered or even attempted to obtain during the investigation stage in the case. Therefore, and without any notice to Dr. DeLuca which is required in order to comply with his due process rights under applicable federal and Florida constitutional law, the DOH surreptitiously issued the subpoenas to AT&T and T-Mobile.

Moreover, once the DOH and its counsel obtained responsive records, including Dr. DeLuca's cell phone records (but not the text messages themselves), the DOH and its counsel intentionally hid and withheld the fact that it had sought and obtained such records, and failed to provide copies of them to Dr. DeLuca's counsel despite being required to do so pursuant to multiple written requests submitted by Dr. DeLuca and his counsel for a complete copy of the DOH's investigative file.

Immediately after referring this matter to DOAH, and based upon information received in the subpoena responses, the DOH made a discovery request to Dr. DeLuca requesting - for the first time - copies of any and all text messages between Dr. DeLuca and the patient. At that point the DOH still had not revealed that they had issued subpoenas or that they had received responses to the subpoenas.

After the DOH's request but prior to Dr. DeLuca's response to same, Dr. DeLuca became aware of the subpoena's existence. Pursuant to the exclusionary rule, Dr. DeLuca therefore objected to the DOH's request which had been made based on information obtained from the improperly-issued and concealed subpoenas. The DOH filed a Motion to Compel, and the administrative law judge granted the Motion to Compel and denied Dr. DeLuca's corresponding protective motions on April 18, 2025.

BASIS FOR INVOKING JURISDICTION

Pursuant to § 120.68(1)(b), Fla. Stat., a preliminary, procedural, or intermediate agency action or ruling is immediately reviewable if review of the final agency decision would not provide an adequate remedy.

The proper method of seeking review of a nonfinal administrative order is to file a timely petition in the appellate court. See Fla. R. App. P. 9.100(c)(3). Pursuant to § 120.68(2)(a), Fla. Stat., such review of non-final agency action shall be sought through a petition in either the appellate district where the agency maintains its headquarters or where a party resides or as otherwise provided by law. The Order to be reviewed in this case was rendered on April 18, 2025, and this Petition is therefore timely under Fla. R. App. P. 9.100(c)(1).

Petitioner, as a resident of Palm Beach County, files this Petition seeking review of a non-final agency order compelling discovery of privileged information as well as constitutionally protected information. An order compelling discovery over a claim that the evidence is privileged is generally reviewable by an appellate court, because the harm cannot be remedied on review of the final order. See *State, Dept. of Transp. v. OHM Remediation Services Corp.*, 772 So. 2d 572 (Fla. 1st DCA 2000); *Scientific Games, Inc., v. Dittler Bros., Inc.*, 586 So. 2d 1128 (Fla. 1st DCA 1991); *Ranpura v. Department of Prof'l Regulation*, 507 So. 2d 146 (Fla. 1st DCA 1987).

STATEMENT OF THE FACTS

On or about July 5, 2023, Patient DB's mother submitted a complaint to the DOH regarding Dr. DeLuca and alleging that he had been inappropriate in his case and treatment for her daughter Patient DB. (App. 13-33). The complaint included screenshot images of text messages between Dr. DeLuca and Patient DB. (App. 22-30).

From July 5, 2023 until September 25, 2023, the DOH conducted its investigation of Dr. DeLuca and the allegations within the complaint submitted by Patient DB's mother. (App. 10). On October 20, 2023, the

DOH provided a copy of its "complete investigative file" to Dr. DeLuca. (App. 8-276). As part of the investigation, the DOH exercised its power to issue subpoenas during an investigation, including through multiple subpoenas issued on or about August 23, 2023 (E.g., App. 39-41, 168-170).

As part of the investigation, the DOH also conducted an interview with Patient DB's mother on July 20, 2023. (App. 12). The DOH also contacted the Palm Beach County Sheriff's Office ("PBCS") and provided PBCS with a copy of the complaint from Patient DB's mother. (App. 37).

The DOH closed its investigation and finalized its investigative report on September 25, 2023 (App. 10 – "Period of Investigation and Type of Report: 07/05/2023 to 09/25/2023 | Final"). Specifically, DOH Investigator Allis Richardson ("DOH Investigator Richardson") prepared and finalized the investigative report on September 25, 2023, with Investigation Supervisor Niaah Ellis signing approval that same day. (App. 10).

After the DOH had determined that its investigation was complete and legally sufficient, prior to June 28, 2024 and pursuant to § 456.073(2), Fla. Stat., the DOH submitted its investigative report to the Panel for the allegations against Dr. DeLuca relating to Patient DB.

On June 28, 2024 - just over nine (9) months after the close of the DOH's investigation - the allegations against Dr. DeLuca were heard by the Panel. The DOH recommended at the hearing that the Panel find that there was probable cause to believe that Dr. DeLuca violated § 456.072(1)(b), Fla. Stat., and that the Panel authorize the filing of an administrative complaint against him. (App. 277-288).

The Panel entered a finding of probable cause and the DOH thereafter filed an Administrative Complaint against Dr. DeLuca on July 1, 2024. (App. 289-296). The DOH served Dr. DeLuca with the Administrative Complaint on July 1, 2024 and notified him of his right to request a hearing within 21 days.

On July 10, 2024, Dr. DeLuca submitted his Election of Rights ("EOR") form to the DOH electing a formal administrative hearing together with his Request for a Formal Administrative Hearing Involving Disputed Issues of Material Fact. (App. 297-308).

On August 20, 2024, the DOH amended the Administrative Complaint and served Dr. DeLuca with a copy of the Amended Administrative Complaint. The DOH again notified Dr. DeLuca of his right to request a hearing within 21 days (App. 309-315).

Dr. DeLuca again elected a formal administrative hearing on his EOR and also submitted a Request for a Formal Administrative Hearing Involving Disputed Issues of Material Fact in response to the Amended Administrative Complaint. (App. 316-326).

On the very next day – August 21, 2024 – the DOH's Investigation Supervisor Corynn Alberto ("Ms. Alberto") requested that the DOH's Investigative Service Unit issue two new subpoenas for this matter. Specifically, Ms. Alberto requested that investigative subpoenas be issued to T-Mobile and AT&T as follows:

- Please subpoena T-Mobile for the following records:
  - Certified subscriber records and information for phone number [redacted] (belonging to patient DB)
  - Any and all certified call/phone detail records showing all communication, including text messages, between phone numbers [redacted] (DB) and [redacted – Dr. DeLuca's phone number] from on or about May 2022, through March 2023.
- Please subpoena AT&T for the following records:
  - Certified subscriber records and information for phone number [redacted – Dr. DeLuca's phone number]

– Any and all certified call/phone detail records showing all communication, including text messages, between phone numbers [redacted – DB] and [redacted – Dr. DeLuca] from on or about May 2022, through March 2023.

(App. 328-329) (Emphasis added).

One week later, on August 28, 2024 – and prior to receiving any EOR form from Dr. DeLuca indicating that he would request a hearing for the Amended Administrative Complaint - DOH Investigator Richardson issued a new subpoena to T-Mobile for records and information relating to Dr. DeLuca and Patient DB. (App. 1436-1438).

In the Affidavit for Subpoena dated August 28, 2024, DOH Investigator Richardson claimed that the DOH was "initiating an investigation, investigating a complaint, or conducting a preliminary inquiry pursuant to Section 456.073, F.S." (App. 1438). DOH Investigator Richardson made such claim in her affidavit despite the investigation of the complaint in this matter having already been completed and finalized on September 25, 2023 (by DOH Investigator Richardson herself), the investigative report having already been submitted to the Panel prior to June 28, 2024, and the Panel having already found probable cause and

authorized the issuance of an administrative complaint based on the DOH's investigative report on June 28, 2024.

DOH Investigator Richardson also made claims in the Affidavit for Subpoena to T-Mobile far beyond the allegations of the Amended Administrative Complaint, and represented to T-Mobile that Dr. DeLuca was under investigation for improper prescribing to Patient DB:

> This investigation/claim/report/complaint against or involving MARK C. DELUCA alleging that DB began to see DELUCA in the spring of 2022 for psychiatric treatment and medication. When DB initiating [sic] went to see DELUCA, she was allegedly depressed, paranoid, and mildly psychotic. DB was diagnosed with Bipolar 1 with psychotic features and borderline personality disorder. DELUCA prescribed her medications and also acted as her mental health therapist. DB alleges that their telehealth and text conversations seemed flirty. DELUCA treated DB via telehealth while she was in Rhode Island for the summer of 2022. DELUCA allegedly offered DB to clean his parents' boat in Rhode Island an [sic] open a business in Florida. It is alleged that DELUCA irresponsibly increased her medications. At one point, DB was prescribed two mood stabilizers, Lithium, antidepressants, ketamine shots, and B12 shots. DB was visually getting worse. In April 2023, DB showed her mother, JB, months of text chains between DB and DELUCA that were sexually suggestive. DB states it was never physical with DELUCA. JB formally refused to return to DELUCA.
>
> (App. 1438). (Emphasis added).

Notably, the DOH's own consulting expert had already reviewed Dr. DeLuca's medical records (including prescriptions) in this matter and had

formally opined that Dr. DeLuca had met all the applicable standards of care in the treatment of the patient, including specifically with regard to medication adjustments. (App. 1742-1752). Accordingly, the DOH did not seek a finding of probable cause as to any prescribing issues or allege (or even suggest) in the Amended Administrative Complaint any sort of prescribing allegation against Dr. DeLuca. Nevertheless, DOH Investigator Richardson represented in the DOH's affidavit to T-Mobile that "[i]t is alleged that DELUCA irresponsibly increased her medications."

On September 4, 2024, Dr. DeLuca submitted his second EOR form requesting a formal administrative hearing.

On September 24, 2024, DOH Investigator Richardson issued a second subpoena, this time to AT&T and again seeking records and information relating to Dr. DeLuca and Patient DB. (App. 330-331).

In the Affidavit for Subpoena dated September 23, 2024, DOH Investigator Richardson again claimed that the DOH was "initiating an investigation, investigating a complaint, or conducting a preliminary inquiry pursuant to Section 456.073, F.S." (App. 331).

As with the T-Mobile subpoena, DOH Investigator Richardson made the same claim in her affidavit for the AT&T subpoena despite the

investigation of the complaint in this matter having already been completed and finalized on September 25, 2023 (by DOH Investigator Richardson herself), the investigative report having already been submitted to the Panel prior to June 28, 2024, and the Panel having already found probable cause and authorized the issuance of an administrative complaint based on the DOH's investigative report on June 28, 2024.

Also as with the T-Mobile subpoena, DOH Investigator Richardson repeated verbatim the claims indicating that Dr. DeLuca was under investigation for improper prescribing to Patient DB. (App. 331 – "It is alleged that DELUCA irresponsibly increased her medications.") At that point in time, those claims were patently false.

The DOH's "investigative" subpoena to AT&T commanded the production of:

> Certified subscriber records and information for [Dr. DeLuca's cellular phone number]; any and all certified records for calls/ phone detail records showing all communication including text messages between phone numbers [redacted] and [redacted] from the timeframe of May 1, 2022 through May 31, 2023.

(App. 330) Emphasis added.

The DOH's "investigative" subpoena to T-Mobile commanded the production of:

> Certified subscriber records and information for [Patient DB's cellular phone number]; any and all certified records for calls/ phone detail records showing all communication including text messages between phone numbers [redacted] and [redacted] from the timeframe of May 1, 2022 through May 31, 2023.

(App. 1436-1437) Emphasis added.

May 1, 2022 is nearly two weeks earlier than the first time Dr. DeLuca treated (or even met or knew) Patient DB – May 13, 2022. May 31, 2023 is several months after Patient DB's last date of treatment or alleged contact with Dr. DeLuca or his office which occurred in or around late February/ early March 2023.

On or about October 5, 2024, the DOH received AT&T's subpoena response, including over 1,100 pages of telephone records. On or about October 23, 2024, the DOH received T-Mobile's subpoena response, including over 260 pages of telephone records.

On October 31, 2024, DOH Investigator Richardson prepared and signed a Supplemental Investigative Report which included the records received from T-Mobile and AT&T. DOH Investigator Richardson described the period of investigation as "August 21, 2024 to October 22, 2024". (App. 327). There was no such period of investigation.

On February 10, 2025, the DOH referred this matter to the Division of Administrative Hearings ("DOAH"). (App. 1753-1771).

On February 12, 2025, the DOH served Dr. DeLuca with its Requests for Production, including Request #9 which states: "Please produce a copy of all emails, text messages, and/or other correspondence (written or electronic) with Patient DB." (App. 1772-1775). The inclusion of Request #9 was curious, as the DOH had not requested or sought that information at any point during the nearly year-long period from when the DOH's investigation began on July 5, 2023 through the June 28, 2024 Panel hearing, by which time the DOH's investigation was both complete and required to be legally sufficient.

The DOH already had text messages between Dr. DeLuca and Patient DB as set forth in the screenshots in the DOH's investigative file. The DOH closed its investigation, submitted its investigative file, proceeded to the Panel, and issued an Administrative Complaint based entirely on those screenshots of text messages already in the DOH's possession, and did so without ever once requesting additional communications between Dr. DeLuca and Patient DB – that is, until the DOH received records from AT&T and T-Mobile in response to the improper subpoenas and in clear

and intentional violation of Respondent's federal and Florida due process rights.

The reason for DOH making its Request #9 to Dr. DeLuca became obvious two days later on February 14, 2025, when during a telephone conference with Dr. DeLuca's counsel, the DOH prosecutor inadvertently referred to the subpoenas, thereby revealing their existence for the first time to Petitioner.

Dr. DeLuca's counsel immediately requested copies of the subpoenas, any documents received in response to the subpoenas, any correspondence between the DOH and T-Mobile / AT&T regarding the subpoenas, and any intraoffice correspondence regarding the subpoenas. (App. 1776-1782).

The DOH thereafter provided copies of the purported "Supplemental Investigative Report" which included documents received in response to the subpoenas, but did not include the subpoenas themselves. This was a departure from the DOH's normal practice, as the original Investigative Report for this matter included each of the subpoenas issued on August 23, 2023 as well as the documents received in response to same. (E.g., App. 39-41, 168-170).

Dr. DeLuca's counsel noted the absence of the requested copies of the subpoenas in the materials provided by the DOH, and again requested that the DOH provide the subpoenas to AT&T and T-Mobile themselves. The DOH then "added" the subpoenas to its "Supplemental Investigative Report", which now bore an approval date of February 19, 2025 (despite being signed by DOH Investigator Richardson on October 31, 2024). (App. 327).

By comparison, the DOH's original Investigative Report in this matter was prepared and signed by DOH Investigator Richardson on September 25, 2024 and was approved by the Investigation Supervisor that same day. (App. 10).

In other words:

(1) the DOH obtained cell phone records from the surreptitiously and improperly issued "investigative" subpoenas which indicated the existence of additional text messages beyond what the DOH had obtained during its investigation, based its recommendation of probable cause upon, and issued an administrative complaint on the basis of;

(2) the DOH concealed from Dr. DeLuca the existence of the subpoenas or the information received from same, despite Dr. DeLuca's

multiple requests for copies of the DOH's investigative file throughout the process;

(3) the DOH declined to finalize/approve the "Supplemental Investigative Report" for more than four (4) months (potentially to be able to claim that it was not required to produce same to Dr. DeLuca until it had been finalized/approved);

(4) the DOH waited until two days after the DOAH matter was initiated and it properly had discovery powers again (unlike when it issued the subpoenas) to issue a request to Dr. DeLuca based on information obtained from the improperly-issued "investigative" subpoenas sent months after the completion of the investigation;

(5) after the DOH inadvertently revealed the existence of the subpoenas during a call several days later and Dr. DeLuca requested a copy of same, the DOH provided a "supplemental" investigative report which included the records received in response to the subpoenas but not the subpoenas themselves; and

(6) only after Dr. DeLuca's counsel noted the absence of the subpoenas from the supplemental investigative file (a departure from the

typical DOH practice) and again sought copies of the subpoenas did the DOH finally "update" the supplemental investigative report to include them.

Dr. DeLuca then objected to the DOH's Request for Production #9, stating:

> RESPONSE: Objection as the information sought through this Request for Production is inadmissible under the "fruit of the poisonous tree" doctrine, this Request for Production is the product of information / evidence which Petitioner directly obtained through unconstitutional means which violate Respondent's due process rights and did not comply with the requirements of Sections 456.072 and 456.073, Florida Statutes, and/or the Florida Administrative Procedures Act. This Request for Production is the product of Subpoenas issued by the Petitioner after the investigation had been completed in this case but before Petitioner had referred the case to DOAH (at which time Petitioner regained subpoena power pursuant to DOAH), and Petitioner through this Request for Production improperly seeks to exploit such illegality. Respondent moves for a protective order regarding this Request for Production and is filing a separate Motion detailing the grounds for same.
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> (App. 1785).

The DOH thereafter filed a Motion to Compel (App. 1787-1793), and Dr. DeLuca filed a Response to Motion to Compel and Motion to Suppress, Motion to Exclude, and Motion to Deem Phone Records Inadmissible (App. 1794-1846). On April 18, 2025, the administrative law judge granted the DOH's Motion to Compel and denied Dr. DeLuca's motions, stating:

> Respondent's valiant and eloquent attempts to have the undersigned exclude or suppress evidence prior to its discovery are both premature and involve asking an ALJ to make constitutional rulings based upon the 4th Amendment to the United States Constitution. These are remedies available in circuit and county court, as well as federal court, where members of the judiciary have the power to rule upon such issues as "fruit of the poisonous tree," suppression due to an unlawful search and seizure, and application of the exclusionary rule. The undersigned, as an ALJ within the executive branch of Florida government, has no equitable powers such as contempt, exclusionary powers, and even enforcement powers regarding subpoenas. An ALJ's power to effect discovery is not always as comprehensive as a court's power. State, Dep't of Admin., Div. of Personnel v. Dep't of Admin., Div. of Admin. Hrgs., More specifically, the exclusionary rule is generally not applicable to administrative proceedings pursuant to chapter 120, Florida Statutes.
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> (App. 5-7) (Emphasis Added).[1]

NATURE OF RELIEF SOUGHT

The nature of the relief sought is an order granting this Petition, and quashing the administrative Order dated April 18, 2025 granting the DOH's Motion to Compel, and also reversing the portion of the Order denying Dr.

[1] Relatedly, the administrative law judge denied Dr. DeLuca's Motion to Quash the Subpoenas (App. 1847-1871) as moot (since the subpoenas had been issued in secret and already been responded to by T-Mobile and AT&T months before Dr. DeLuca was made aware of their existence) and denied Dr. DeLuca's Amended Motion for Protective Order (App. 1872-1879).

DeLuca's Motion to Suppress and Motion to Exclude and instead granting both Motions.

ARGUMENT

Appellate review of the Order in question is the appropriate remedy based on the facts in this matter and the relief being sought, as the Order requires the disclosure of protected and privileged information. See *State, Dept. of Transp. v. OHM Remediation Services Corp.*, 772 So. 2d 572 (Fla. 1st DCA 2000); *Scientific Games, Inc., v. Dittler Bros., Inc.*, 586 So. 2d 1128 (Fla. 1st DCA 1991); *Ranpura v. Department of Prof'l Regulation*, 507 So. 2d 146 (Fla. 1st DCA 1987).

Similar to a petitioner seeking certiorari relief of a nonfinal order, a petitioner seeking review of nonfinal administrative action generally must establish that the action "departs from the essential requirements of law and thus causes material injury to the petitioner throughout the remainder of the proceedings, effectively leaving no adequate remedy on appeal." *Allstate Ins. Co. v. Langston*, 655 So. 2d 91, 95 (Fla. 1995); *Robles v. Baptist Health South Florida, Inc.*, 197 So. 3d 1196, 1199 (Fla. 3d DCA 2016).

In petitions for review of nonfinal administrative orders, the standard of review is essentially the same as that for nonfinal orders from civil proceedings. An order compelling discovery over a claim that the evidence is privileged is generally reviewable by an appellate court, because the harm cannot be remedied on review of the final order. *State Dep't of Transp. v. OHM Remediation Servs. Corp.*, 772 So. 2d 572, 573 (Fla. 1st DCA 2000).

Although the DOH is permitted under Fla. Stat. § 456.071 to issue subpoenas during an investigation, there is no statutory authority that permits warrantless searches of phones or phone records. The investigation period ended months before the DOH's issuance of the "investigative" subpoenas at issue and unquestionably by the time of the Panel's finding of probable case and authorization to issue an administrative complaint. Further, while the DOH also has subpoena powers in proceedings in accordance with the APA, the DOH does not have such subpoena powers unless and until the DOH has referred the case to DOAH. The DOH did not refer this case to DOAH until months after issuing and receiving responses to the improper subpoenas. Therefore, the DOH did not have subpoena power or the legal authority to exercise it at

the time either of the subpoenas were issued. Consequently, the subpoenas issued by the DOH were not valid or legal.

Moreover, a search warrant is needed to search such records. "Overbroad or unreasonable subpoenas, including investigative subpoenas, violate the Fourth Amendment protection against unreasonable searches and seizures. See *Hale v. Henkel*, 201 U.S. 43, 76, 26 S. Ct. 370 (1906) (overruled on other grounds but subsequently cited with approval in *Dean v. State*, 478 So.2d 38 (Fla.1985)). 'The gist of the protection is … that the disclosure sought shall not be unreasonable.' *Okla. Press Publ'g Co. v. Walling*, 327 U.S. 186, 208 (1946); see also *Imparato v. Spicola*, 238 So. 2d 503, 511 (Fla. 2d DCA 1970)." *Check 'n Go of Florida, Inc. v. State*, 790 So. 2d 454, 459 (Fla. 5th DCA 2001).

The Florida Supreme Court spoke on the quantum of information that could be lawfully discovered through an administrative subpoena in *Dean v. State*, 478 So. 2d 38 (Fla. 1985). There, the court reaffirmed that the subpoena must be 'properly limited in scope, relevant in purpose, and specific in directive,' in order not to be unduly burdensome. *Id.* at 40. The Second District Court of Appeal amplified this principle in holding that "[a] subpoena duces tecum may not lawfully require the production of a mass

of books and papers, merely so that one may search through them to gather evidence; and an omnibus subpoena for all, or even a substantial part, of the books and records of the subpoenaed party is invalid." *Imparato*, 238 So. 2d at 511. *Id.* at 459-460.

Probable cause for a search warrant exists when the affidavit in support of the warrant alleges sufficient facts to cause a person of reasonable caution to believe that contraband or other evidence of criminal activity is located at the place to be searched. Fla. Stat. § 933.02. The language in a warrant must be confined to a particular crime and does not grant broad access to law enforcement to essentially rummage for evidence of items that may or may not be a crime.

However, in direct contravention to this established legal principle, the DOH sought text messages and phone records for a 13-month period of time expanding months beyond the pertinent timeframe at issue in the case in hopes of finding some specific communication to support their case. Further, the DOH's subpoena explicitly sought "any and all certified records for calls/phone detail records showing all communication" for Dr.

DeLuca's cellular phone during that 13-month period.[2] Thus, the DOH was seeking the actual text messages and their content, not just records.

Although there are no Florida cases directly on point, there is ample federal precedent in this area. The warrant application in *United States v. Chavez*, 423 F. Supp. 3d 194 (W.D.N.C. 2019) sought to cast its net as broadly as the DOH in the instant case. The warrant in *Chavez* demanded the seizure of categories of records and data from the defendant's Facebook account – in effect, asking for the sum of information for the account.

Again, as in the application at bar, the application in *Chavez* contemplated that once this seizure was completed, law enforcement would conduct a search of the entire account, determining for itself what was reflective of the probable cause that engendered the search in the first

[2] Additionally, with respect to the affidavit alleging "sufficient facts", as discussed above the DOH made false assertions in the Affidavits for Subpoena misrepresenting the purpose of the subpoenas (i.e., claiming they were for purposes of initiating an investigation despite such investigation having already been closed and completed) as well as misrepresenting the allegations against Dr. DeLuca (i.e., asserting that he was allegedly being investigated for over-prescribing).

place.[3] Citing *United States v. Blake*, 868 F. 3d 960 (11th Cir. 2017), the *Chavez* court found this procedure to be unconstitutionally overbroad and inconsistent with the Fourth Amendment particularity requirement. *Chavez*, 423 F. Supp. 3d at 206-07.

The Fourth Amendment Protects Against Unreasonable Search and Seizure

As a United States and Florida citizen, Dr. DeLuca had a right to be secure in his person, his home, his papers and his effects against unreasonable searches and seizures. That right is guaranteed both by the Fourth Amendment to the United States Constitution, and by Article I, §12, of the Florida Constitution. Furthermore, the Florida Constitution "shall be construed in conformity with the Fourth Amendment to the United States Constitution, as interpreted by the United States Supreme Court." Article I, §12, Florida Constitution (2024).

The exclusionary rule which stems from this Fourth Amendment right (more commonly referred to as the fruit of the poisonous tree doctrine) applies in administrative proceedings when there are "circumstances

[3] Here the investigator from DOH is not a Federal or State Law Enforcement Officer and only has subpoena power and authority granted specifically by Section 456.071 Florida Statutes. Neither the DOH nor its investigators could present a search warrant to a Judge for text messages.

involving ‘egregious violations of Fourth Amendment or other liberties that might transgress notions of fundamental fairness and undermine the probative value of the evidence obtained.’” *Valdez v. Dept. of Revenue, State*, 622 So. 2d 62, 63 (Fla. 1st DCA 1993) (quoting *Lopez-Medina*, 468 U.S. at 1050-1051).

While search warrants are generally expected to be issued prior to any search, certain exceptions have been recognized, including extraordinary circumstances. Where there is no search warrant, the prosecution has “the burden to establish that the evidence sought to be suppressed was obtained lawfully.” *State v. Setzler*, 667 So. 2d 343, 345 (Fla. 1st DCA 1995).

The Fourth Amendment warrant requirement also presents a constitutional limitation to subpoena enforcement. If the Constitution requires a search warrant to obtain certain information, the government cannot use a subpoena to get that information instead. See, e.g., *Dean v. State*, 478 So. 2d 38, 42 (Fla. 1985) (“A subpoena duces tecum is not a substitute for a search warrant, nor may its use be a subterfuge for a warrantless search and seizure”). While a prosecutor can issue a subpoena

pursuant to an ongoing investigation, a search warrant involves far more procedural and constitutional hurdles.

A search warrant requires the government to prepare a detailed search warrant application, including an affidavit from a law enforcement agent, to convince a judge that there is "probable cause to believe that the legitimate object of a search is located in a particular place." *Steagald v. United States*, 451 U.S. 204, 213 (1981). Additionally, the warrant must be narrowly tailored and describe with particularity the objects that will be searched and seized under the Fourth Amendment. See *Maryland v. Garrison*, 480 U.S. 79, 84 (1987). "The purpose behind the warrant requirement is to insure that the judgment of a neutral…magistrate is imposed against the unbridled discretion of an official caught up in the heat of an investigation." *United States v. Hermiz*, 42 F. Supp. 3d 856, 866 (E.D. Mich. 2014) (quoting *United States v. Blue Diamond Coal*, 667 F.2d 510, 518 (6th Cir. 1981)); see *United States v. Amerson*, 483 F.3d 73, 82 (2d Cir. 2007) ("[A] significant reason for warrants [is] to provide a check on the arbitrary use of government power").

The government must take basic and technical steps to obtain a search warrant. Most importantly, they must be able to establish probable

cause and meet the other requirements of a search warrant for a phone. Where the government lacks probable cause authority to obtain a search warrant or suspects it will not be able to access a password-protected phone through a search warrant, its only option may be to seek information from the phone via subpoena. But that does not mean that the Fourth Amendment does not apply and limit the government's subpoena power.

A Warrant Is Required to Obtain Text Messages

Supreme Court precedent makes it clear that the Fourth Amendment fully protects text messaging. Text messaging has become one of the predominant forms of communication in our society. Cell phones and cell phone records often contain a person's most private correspondence with friends, family, co-workers and even clients/patients. If the government wants to read those messages, a subpoena is not sufficient; it must get a warrant.

The Supreme Court has long held that a "Fourth Amendment search occurs when the government violates a subjective expectation of privacy that society recognizes as reasonable." *Kyllo v. United States*, 533 U.S. 27, 33 (2001). Decades ago, the Supreme Court established that a government invasion of private communications is a search that requires a warrant.

Katz v. United States, 389 U.S. 347, 351 (1967). The court in *Katz* reaffirmed that the Fourth Amendment protects "people, not places," and it held that people have a reasonable expectation of privacy in their private telephone conversations. See 389 U.S. at 351.

Since the *Katz* decision in 1967, methods of communication have evolved with technology. With this evolution the federal courts have steadily expanded fundamental Fourth Amendment protections to other types of private correspondence. See *Kyllo*, 533 U.S. at 34 (evolving technology must not be permitted to "erode the privacy guaranteed by the Fourth Amendment"). For example, in *United States v. Jacobsen*, 466 U.S. 109, 114 (1984), the Supreme Court held that "[l]etters and other sealed packages are in the general class of effects in which the public at large has a legitimate expectation of privacy; warrantless searches of such effects are presumptively unreasonable."

The U.S. Court of Appeals for the Sixth Circuit in *United States v. Warshak* then extended the Fourth Amendment's warrant requirement to email. 631 F. 3d 266, 288 (6th Cir. 2010) ("Given the fundamental similarities between email and traditional forms of communication, it would defy common sense to afford email lesser Fourth Amendment protection.").

Private communication done by text message, rather than by phone call, letter, or email, is not any less protected.

The constitutionality of a warrantless search of a cell phone incident to arrest was addressed in *Riley v. California*, 573 U.S. 373, 402 (2014). The Court held that, absent an applicable exception, a warrant is required to search a cell phone because an individual has a reasonable expectation of privacy in its contents. As the Supreme Court wrote, "[a] cell phone" is "an important feature of human anatomy" and "[t]he sum of an individual's private life can be reconstructed" through a search of a person's phone.

The Court further held:

> "Modern cell phones are not just another technological convenience. With all they contain and all they may reveal, they hold for many Americans 'the privacies of life[.]' The fact that technology now allows an individual to carry such information in his hand does not make the information any less worthy of the protection for which the Founders fought. Our answer to the question of what police must do before searching a cell phone seized incident to an arrest is accordingly simple—get a warrant."

Id. at 403. See also *Smallwood v. State*, 113 So. 3d 724, 736 (Fla. 2013) (quoting *State v. Smith*, 124 Ohio St. 3d 163, 920 N.E. 2d 949, 955 (2009)) ("Once the cell phone is in police custody, the state has satisfied its immediate interest in collecting and preserving evidence and can take

preventive steps to ensure that the data found on the phone are neither lost nor erased. But because a person has a high expectation of privacy in a cell phone's contents, police must then obtain a warrant before intruding into the phone's contents."); *State v. Worsham*, 227 So. 3d 602, 604 (Fla. 4th DCA 2017) ("Modern technology facilitates the storage of large quantities of information on small, portable devices. The emerging trend is to require a warrant to search these devices.").

Four years later, in *Carpenter v. United States*, 138 S. Ct 2206, 2214 (2018), the Supreme Court squarely rejected an argument that the government has the power to subpoena data in which an individual has a reasonable expectation of privacy under the Fourth Amendment. In *Carpenter*, the government obtained an order under the Stored Communications Act for cell site location information from wireless carriers to track a defendant's location. Noting that such an order was akin to a subpoena, the court held that it was a violation of the defendant's Fourth Amendment rights, because the defendant had a reasonable expectation of privacy in his cumulative location data. *Id.* at 2212.

As relevant here, in response to an argument from Justice Samuel Alito (Alito, J., dissenting), the majority concluded that this type of data

cannot be subpoenaed under existing Supreme Court precedent. It stated: "[T]his court has never held that the Government may subpoena third parties for records in which the suspect has a reasonable expectation of privacy." 138 S. Ct. at 2221 (citation omitted). The Court further noted that, "[i]f the choice to proceed by subpoena provided a categorical limitation on Fourth Amendment protection, no type of record would ever be protected by the warrant requirement." *Id.*

The Court dismissed the contention that "private letters, digital contents of a cell phone—any personal information reduced to document form, in fact—may be collected by subpoena for no reason other than 'official curiosity,'" and it stated that the "subpoena doctrine" should not be used to "overcom[e] any reasonable expectation of privacy." *Id.* at 2222 (emphasis added).

Taken together, *Riley* and *Carpenter* stand for the proposition that the government is required to obtain a warrant to search a cell phone because an individual has a reasonable expectation of privacy in the contents of the phone and the government may not use a subpoena to circumvent that warrant requirement. Appropriately, applying *Riley* and *Carpenter* to private text messages located on a personal cell phone or in third party records,

the government is required to obtain a warrant to read them. It cannot compel an individual or third party to turn over private text messages by issuing a subpoena.

Given that advancing technology has led to a significant shift in private communication from the telephone and letter to email and text message, this extension of basic Fourth Amendment guarantees to these technologies should not be controversial. Just as the words one speaks into a phone are private, so too are the words one types into a phone.

In *Young v. State*, 394 So. 3d 1174 (Fla. 4th DCA 2024), the Fourth District Court of Appeals found the defendant had a reasonable expectation of privacy in his private social media messages and private subscriber information, and thus the detective's warrantless search of the defendant's private social media content during homicide investigation violated the Fourth Amendment. The detective had garnered evidence of defendant's involvement in homicide through defendant's private messages, which were analogous to cell phone's text messages. The same privacy concerns applied to private social media records as to cell phone data, and multiple federal courts have recognized reasonable expectation of privacy in private social media content.

Whether the government takes possession of the cell phone is irrelevant under the Fourth Amendment analysis. If a subpoena invades a reasonable expectation of privacy, such as by compelling an individual or third party to turn over the individual's private text messages, the government has conducted a search. "A Fourth Amendment search occurs when the government violates a subjective expectation of privacy that society recognizes as reasonable." *Kyllo*, 533 U.S. at 33.

The *Carpenter* Court rejected the argument that a subpoena did "not involve the direct taking of evidence," and hence did not implicate the Fourth Amendment's warrant requirement. 138 S. Ct. at 2221. The Court declined to adopt the view that subpoenas are "subject[] to lenient scrutiny without regard to the suspect's expectation of privacy."

The subpoenas issued by the DOH on their face clearly request both cellular phone communication providers to provide communication records including text messages. Significantly they do not exclude content, and in paragraphs 20-23 of the DOH's Response to Motion to Quash the DOH confirms in no uncertain terms that the subpoenas were issued to substantiate that text messages were exchanged between Dr. DeLuca and

Patient DB and that they were in fact “sexual in nature” – in other words, seeking the content of the text messages themselves. (App. 1882).

The DOH Did Not Have Authority to Issue the Subpoenas

The subpoenas at issue sought “any and all certified records for calls/ phone detail records showing all communication including text messages between the phone numbers stated on the corresponding Subpoenas from the timeframe of May 1, 2022, through May 31, 2023.[4] Even if the DOH was authorized to issue a subpoena after the investigation was completed and after the file was transferred to the PSU - which it was not - the Subpoena and attached affidavit are facially invalid. Not only was the timeframe stated in the Subpoena overly broad and unduly burdensome, but it requested records that are subject to and prohibited by the Fourth Amendment’s and Article 1, Section 12’s rights against unreasonable searches and seizures.

In both of the subpoenas at issue, the DOH asserted that they were issued pursuant to § 456.071, Fla. Stat. That section explicitly states that the department shall have the power to issue subpoenas “[f]or the purpose of any investigation or proceeding conducted by the department.”

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[4] As noted above, this time period also extends beyond the pertinent timeframe in this matter.

The DOH did not issue the August 2024 and September 2024 subpoenas for the purpose of any investigation. As noted above, pursuant to the DOH's own investigative report, the investigation in this matter was closed and final on September 25, 2023. (App. 10). Further, the completion of and legal sufficiency of the DOH's investigation was required prior to the Panel's June 28, 2024 consideration of this matter pursuant to § 456.073(2), Fla. Stat. ("When its investigation is complete and legally sufficient, the department shall prepare and submit to the probable cause panel of the appropriate regulatory board the investigative report of the department."). Accordingly – and necessarily - the DOH completed its investigation on September 25, 2023 and submitted its investigative report to the Panel at some point between September 25, 2023 and June 28, 2024.

The DOH also did not issue both subpoenas as part of a proceeding. Notably, the DOH explicitly asserted in the subpoenas and Affidavits for Subpoenas that the subpoenas are issued as part of an investigation. The proceeding with DOAH pursuant to the APA did not commence in this case until the DOH referred the case to DOAH in February 2025, nearly six months after it issued the improper subpoenas.

Further, the DOH served Dr. DeLuca with its Amended Administrative Complaint on August 20, 2024. The DOH initiated issuance of the subpoenas on the very next day, and the first such subpoena was issued a week later on August 28, 2024. At that time, Dr. DeLuca had not yet even served his EOR indicating that he would request a hearing for the Amended Administrative Complaint. This matter was not referred to DOAH until February 2025, six (6) months later.

In other words, after the issuance of an administrative complaint authorized by the Panel based on the Panel's review of the DOH's investigative report (which was statutorily required to be both complete and legally sufficient prior to its submittal to the Panel), the DOH then exceeded its authority and effectively reopened its investigation into Dr. DeLuca – without notice – in an attempt to obtain new evidence regarding the very same purported conduct that was the subject of the already-completed investigation.

At that point in the case, the investigation had already been concluded and the DOH did not have subpoena power yet under the APA. Nevertheless, the DOH had apparently realized that it did not have the evidence needed to prove the allegations against Dr. DeLuca by clear and

convincing evidence at a formal administrative hearing. Therefore, the DOH chose to circumvent applicable Florida law and violate Dr. DeLuca's federal and Florida constitutional and due process rights and issue the subpoenas in an effort to obtain authenticated copies of text messages between Dr. DeLuca and the patient from third parties: (1) after the close of the DOH's investigation; (2) prior to the DOH referring this matter to DOAH and obtaining subpoena power under the APA as part of the proceedings under same; (3) without notice to Dr. DeLuca or any opportunity for Dr. DeLuca to challenge the subpoenas; (4) before any proceeding with DOAH pursuant to the APA had been initiated in this case; and (5) without a warrant.

The Investigative Services Unit ("ISU") is the division at the DOH which issued the subject subpoenas. From the DOH's own website and brochure (App. 1837-1838) the role of the ISU is to conduct an investigation, which can include the issuance of subpoenas, and then send the legal division a copy of the final investigative report for review. All of these steps occurred in the investigation in this case prior to the case being presented to the Panel, with one glaring and highly notable exception - the subject subpoenas.

After the completion of the investigation by the ISU, the file is passed on to the Prosecution Services Unit ("PSU") to review the investigative file and recommend to the Panel whether to move forward with an administrative complaint or close the file without further action. At that point a case is submitted to the Panel, the investigation is complete. Upon the issuance of an administrative complaint, the role of the PSU is to prosecute the complaint based on the evidence within the completed investigative file. The PSU does not have the authority to send a file back to the ISU for further investigation, as the DOH did here, thereby exceeding its statutory and legal authority, and any request or need for further evidence to prosecute the administrative complaint should have been done via formal discovery requests to Dr. DeLuca in accordance with the APA or seeking an issuance of subpoenas under the APA.

That process, by virtue of the APA's provisions, includes the ability for Dr. DeLuca to object to such discovery requests or challenge the subpoenas based on the improper breadth and timeframe as well as the false assertions as to the scope and purpose of the subpoenas – and that ability appears to be the very thing the DOH was attempting to circumvent and sidestep through its improper issuance of "investigative" subpoenas

after the issuance of an administrative complaint yet prior to the referral of this matter to DOAH.

The purpose of an investigative subpoena is to obtain evidence to submit to the Panel to determine if an administrative complaint is warranted. § 456.073, Fla. Stat. Despite this, and despite knowing that an administrative complaint had already been prepared and served, DOH Investigator Richardson swore in Affidavits for Subpoena (which were prepared almost a year after the close of the DOH's investigation and after the Amended Administrative Complaint had been issued) that "[t]he Department is initiating an investigation, investigating a complaint, or conducting a preliminary inquiry pursuant to Section 456.073 F.S." and that "this material is necessary to adequately review this matter, or to substantiate the allegations or show them to be unsubstantiated." (App. 331, 1438).

The DOH ostensibly made the deliberate and conscious decision to exceed its authority, make false statements in its Affidavits for Subpoena, and send this matter back to the ISU to perform further "investigation" after the issuance of an administrative complaint (but prior to any referral to DOAH) due to concerns that there was not enough evidence in the

investigative file to sufficiently prosecute the Amended Administrative Complaint. This would also explain why the Affidavits for Subpoena contained allegations and information that were not the subject of or included in the Amended Administrative Complaint. As noted above, the DOH's own expert found the claims relating to over-prescribing to be unsubstantiated and the DOH chose not to pursue those claims, present them to the Panel, or include them in either the Administrative Complaint or Amended Administrative Complaint. Nevertheless, the DOH used those exact allegations and incorporated them in the Subpoenas for Affidavit to support the purported grounds to seek protected and privileged information.

The issuance of these subpoenas and the production of any related communications is a clear violation of the Fourth Amendment and Article 1, Section 12. The DOH's dubious strategy relating to the subpoenas bears particular scrutiny, including but not limited to:

(a) the DOH's decision to wait until the literal day after the issuance of the Amended Administrative Complaint to suddenly initiate the issuance of new "investigative" subpoenas (despite the close of its investigation nearly a year prior and the Panel having already found probable cause based on the DOH's submitted and completed investigative report);

(b) the DOH's untruthful representations in each new Affidavit for Subpoena, the DOH's apparent goal of issuing the new subpoenas when it did in an attempt to "thread the needle" and improperly exercise its subpoena powers without complying with its corresponding obligation to disclose the existence of same to Dr. DeLuca, thereby denying him his right to challenge the subpoenas pursuant § 456.071 and § 120.569 and to exercise both his Federal and Florida constitutional due process rights; and

(c) the DOH's intentional months of silence regarding the issuance of the subpoenas and the productions in response to same;

(d) the DOH's withholding of the subpoenas themselves from its purported "supplemental investigative file" and producing to Dr. DeLuca only the records received in response to the subpoenas until called out on it by Dr. DeLuca, at which time the DOH finally (months after the preparation of the purported supplemental investigative file) brought such file into compliance with its normal practices by adding the subpoenas themselves and providing copies of same to Dr. DeLuca; and

(e) the DOH's attempt to use information gained from the improperly-issued subpoenas to bolster the existing evidence which, pursuant to the DOH's submittal to the Panel, was already complete and legally sufficient

to pursue an administrative complaint against Dr. DeLuca for the allegations at issue in this matter.

The DOH's course of conduct regarding the improper subpoenas is fundamentally unfair to Dr. DeLuca and an egregious violation of his constitutional due process rights as well and is evidence of the precise type of "catch me if you can" gamesmanship the exclusionary rule and the requirements of search warrants / subpoenas are meant to guard against.

As stated supra, under *Valdez* the exclusionary rule should apply here - not only to protect Dr. DeLuca from the unreasonable search and seizure of his private communications, but also to prevent the DOH from doing the same to others.

Concerningly, the constant pushback by the DOH surrounding these Subpoenas gives rise to the thought that this is not the first time the DOH has followed these steps in order to avoid the proper legal procedures needed to obtain such information and to circumvent the constitutional safeguards applicable to same.

The records received from T-Mobile and AT&T were obtained (and the DOH's Response #9 propounded subsequent to receiving and reviewing same) are products of an unreasonable search and seizure in

violation of Dr. DeLuca's rights guaranteed by the Search and Seizure Clause of the Fourth Amendment to the United States Constitution and the Due Process Clause of the Fourteenth Amendment to the United States Constitution and Article I, § 12, of the Florida Constitution. Thus, they are fruit of the poisonous tree.

The records were obtained in violation of Dr. DeLuca's right to counsel and privilege against self-incrimination guaranteed by the Fifth and Fourteenth Amendments to the Constitution of the United States as interpreted by the United States Supreme Court in *Miranda v. Arizona*, 384 U.S. 436 (1966).

The evidence was obtained by virtue of an illegal subpoena in violation of Dr. DeLuca's rights as guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States, and Article 1, § 12 of the Constitution of the State of Florida. They are "fruits of the poisonous tree." *Gipson v. State*, 667 So. 2d 418 (Fla. 5th DCA 1996).

Dr. DeLuca's phone records, text messages, and call logs were not knowingly, intelligently, or voluntarily given, in violation of Dr. DeLuca's rights as guaranteed by the Fifth Amendment to the Constitution of the United States and by Article I, § 9 of the Constitution of the State of Florida.

Additionally, the DOH referred the case to the Palm Beach County Sheriff's Department for a review and criminal investigation. (App. 37). Thus, the DOH has added a criminal component to the case and is foreclosed from arguing that the case does not involve criminal aspects.

CONCLUSION

For all of the reasons argued above, the Order in question departed from the essential requirements of law, causing material and irreparable harm for which no adequate remedy is available to Dr. DeLuca.

Dr. DeLuca respectfully requests this Honorable Court to exercise its jurisdiction over nonfinal agency actions and issue an order quashing all of the Order rendered April 18, 2025.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished via e-mail this 19th day of May 2025 to: Corynn Alberto, Esq., Assistant General Counsel, Florida Department of Health, at Corynn.alberto@flhealth.gov, Counsel for Respondent.

/s/ Brian C. Evander
Brian C. Evander, Esq., Florida Bar No. 0086756

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this petition complies with the font requirements of Rule 9.100(l) of the Florida Rules of Appellate Procedure.

/s/ Brian C. Evander
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